

Disclosure Controls & Procedures Memo

Disclosure Controls & Procedures — Memorandum

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Prepared by / owner	Priya Raman
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Status	Open escalation item recorded
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Memorandum. To: Disclosure Committee. From: Priya Raman, General Counsel. Re: Disclosure controls and procedures — operation, and one open escalation item. Date: 10 November 2025.

1. Purpose

This memorandum records the operation of the Company's disclosure controls and procedures and the materiality-review and escalation process by which potential disclosure items are identified, assessed and resolved. It also records one item that remains **open** and is explicitly carried forward pending further information.

2. Process summary

- 1 Functions escalate potential disclosure items to the Office of the General Counsel as they arise.
- 2 The General Counsel screens items for potential materiality and refers qualifying items to the Disclosure Committee.
- 3 The Committee assesses materiality on the information available, taking advice from outside counsel where appropriate, and records a decision or, where information is incomplete, an explicit deferral with a review date.
- 4 Decisions and deferrals are minuted and revisited as facts develop.

3. Items reviewed this period

Item	Function	Status
Sales/use tax nexus exposure (US states)	Tax	Assessed — quantified; remediation in progress
Open-source licence remediation	Legal	Assessed — immaterial; remediation planned
Ordinary litigation portfolio	Legal	Assessed — within ordinary course
Cyber / account-integrity matter (account-integrity workstream, AURORA)	Security / Legal	OPEN — escalation question unresolved (see §4)

4. Open escalation item — account-integrity matter

An item concerning a cyber and account-integrity matter (the account-integrity workstream referred to internally as **AURORA**, and the associated credential-hygiene programme) has been escalated to the Committee. The Committee considered **whether, and if so when**, the matter must be disclosed — to counterparties, regulators and in the Company's financial reporting — and concluded that it could not resolve that question on the present information.

Specifically, the Committee noted that: (a) the forensic review is ongoing and the scope of any data access has not been determined; (b) the materiality of the matter is *not yet determinable*; and (c) outside counsel's assessment is not complete. The Committee therefore **left the disclosure question open**, pending completion of the forensic review and receipt of counsel's advice, rather than concluding either that disclosure is required or that it is not.

Carry-forward and review

- The disclosure question on the account-integrity matter is carried forward as an open item and is to be revisited promptly on receipt of the final forensic findings and outside-counsel advice.
- In the interim, functions are to continue to handle the matter in accordance with counsel's guidance and to avoid speculative characterisation.
- The Committee will reconvene on this item ahead of any transaction milestone that would require a representation on the subject.

This memorandum records an unresolved question; it is not a conclusion that disclosure is or is not required. Privileged and confidential.